

## 20STCV49018 20STCV49018

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-21

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Case Number: 20STCV49018 Hearing Date: September 21, 2026 Dept: D

GAMEZ, ET AL. v. COUNTY  
OF LOS ANGELES, ET AL.

CASE NO.: 20STCV49018

HEARING: 09/21/2026 @  
10:30 A.M.

#20

### TENTATIVE RULING

I.

Plaintiff's motion to vacate the June 24, 2026 order  
is GRANTED.

The Court sets a hearing date on November  
20, 2026, at 9:00am, for an Order to Show Cause regarding the proper  
trial date in this matter.

Moving Party to give notice.

### Background

As a result of alleged abuse and neglect by his foster  
parents and the County of Los Angeles, J.G., a nine-year-old male, died while  
in the care of his paternal aunt and uncle, Defendants Tomas and Maria  
Guadalupe Gamez. They were his foster parents. His mother, Maria Gamez, and two

siblings, K.G. and A.G., sue the County of Los Angeles; social worker Leticia Garcia; social worker Gabriela Alcala; social worker Francine Jimenez; J.G.'s father, Geraldo Gamez; J.G.'s uncle, Tomas Gamez; and J.G.'s aunt, Maria Guadalupe Gamez. The causes of action are the following: (1) wrongful death; (2) negligence; (3) negligent supervision; (4) negligent hiring and retention; (5) violation of Civil Code section 52.1; and (6) survival action. On October 29, 2021, Geraldo Gamez, individually and as personal representative of decedent, filed a cross-complaint against the same parties and decedent's mother for the following: (1) violation of civil rights under 42 U.S.C. 1983; (2) Monell liability; (3) wrongful death; (4) breach of mandatory duties; (5) breach of duties under special relationship; (6) survival action; and (7) malicious prosecution. Cross-Complainant alleges that the social workers were acting with the course and scope of their duties as employees or agents of the county.

On February 18, 2026, Plaintiffs filed a Notice of Settlement of the Entire Case. On March 3, 2026, Plaintiffs filed a Notice of Errata Stating that there were still unsettled defendants – Maria Guadalupepe and Tomas Gamez.

On June 24, 2026, the Court held an Order to Show Cause Re: Dismissal (Settlement) where the entire case was dismissed without prejudice, except as to Defendants Mister Gamez and Maria Gadalupepe who were dismissed with prejudice as case was filed on December 22, 2020, and passed the 5-year statutory period.

On July 14, 2026, Plaintiffs filed the instant motion. There is no opposition.

#### Requests for Judicial Notice

Plaintiff requests that the Court take judicial notice of 18 documents from the Court's file in this case. The request is denied. The Court need not take judicial notice of its own case file.

#### Legal Standard

Code of Civil Procedure section 583.310 provides that "an action shall be brought to trial within five years after the action is commenced against the defendant."

An action which is not brought to trial within the prescribed period must be dismissed. (Code Civ. Proc. § 583.360, subd. (a).) These requirements are mandatory “and are not subject to extension, excuse, or exception except as expressly provided by statute.” (Code Civ. Proc. § 583.360, subd. (b).) The purpose of the five-year dismissal statute is to prevent the prosecution of stale claims where defendants could be prejudiced by loss of evidence and diminished memories of witnesses. (Lewis v. Superior Court (1985) 175 Cal.App.3d 366, 375, 220 Cal.Rptr. 594.)

Under Code of Civil Procedure section 583.340, “In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which any of the following conditions existed: (a) The jurisdiction of the court to try the action was suspended; (b) Prosecution or trial of the action was stayed or enjoined; (c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.” (Code Civ. Proc., § 583.340.)

The statutory period runs from the date of filing of the original complaint. (Davalos v. County of Los Angeles (1983) 142 Cal. App.3d 57, 63.)

This motion is made under Code of Civil Procedure sections 473(b), 473(d), 1008, 128(a)(8), 583.340(b), 583.340(c), 583.350, and 583.360, and under due process principles.

Plaintiff argues that the June 24, 2026 dismissal with prejudice should be vacated. The Court dismissed Tomas Gamez/Mister Gamez and Maria Guadalupe Gamez/Maria Guadalupe with prejudice on five-year grounds at an OSC re Dismissal (Settlement), and entered a separate Order of Dismissal as to “MISTER GAMEZ, et al.” on the Court’s own motion, even though no defendant had filed or served a noticed motion under Code of Civil Procedure section 583.360 and Plaintiffs had no meaningful opportunity to brief the statutory exclusions that applied.

Code of Civil Procedure section 473(d) authorizes the Court to set aside void judgments or orders. Section 473(b) permits relief from a dismissal or order entered through mistake, inadvertence, surprise, or excusable neglect. Code Civ. Proc. § 473(b).

Section 473(b) is remedial and should be liberally applied

to permit decisions on the merits. (*Zamora v. Clayborn Contracting Grp., Inc.*, 28 Cal. 4th 249, 254 (2002); *Rappleyea v. Campbell*, 8 Cal. 4th 975, 980 (1994).)

No judgment has been entered to Plaintiffs' knowledge.

(Whibley Decl., ¶ 20) The June 24th ruling is presently a minute order. (RJN, Ex. 13, p. 001.) The Court retains authority to correct or modify interim orders before final judgment. (*Le Francois v. Goel* (2005) 35 Cal. 4th 1094, 1108; *Darling, Hall & Rae v. Kritt* (1999) 75 Cal. App. 4th 1148, 1156–57; Code Civ. Proc. § 128(a)(8).

The five-year statute is mandatory only after proper computation of excluded periods. Code Civ. Proc. §§ 583.310, 583.340, 583.360. Section 583.340(b) excludes the time during which prosecution or trial of the action was stayed or enjoined. Code Civ. Proc. § 583.340(b). Section 583.340(c) excludes time during which bringing the action to trial was impossible, impracticable, or futile. Code Civ. Proc. § 583.340(c). This determination is fact-intensive and requires the Court to consider all circumstances, including the plaintiff's diligence. (*Gaines v. Fid. Nat'l Title Ins. Co.* (2016) 62 Cal. 4th 1081, 1100–02; *Bruns*, 51 Cal. 4th at 730–31.)

## Discussion

### Pursuant to the Code

of Civil Procedure, an action shall be brought to trial within five years after the action is commenced against the defendant. (Code Civ. Proc., § 583.310.) This excludes the time during which any of the following conditions existed: (a) the jurisdiction of the court to try the action was suspended; (b) prosecution or trial of the action was stayed or enjoined; (c) bringing the action to trial, for any other reason, was impossible, impracticable, or futile. (Code Civ. Proc., § 583.340(a-c).)

### An action shall be

dismissed by the court on its own motion or on motion of the defendant...if the action is not brought to trial within 5 years, excluding any tolling period. (Code Civ. Proc., § 583.360(a).)

### For purposes of

section 583.340, proceeding with trial may be impracticable or futile when it would be difficult to proceed with trial before other related litigation is

fully resolved. (Reserve Ins. Co. v. Universal Underwriters Ins. Co., 51 Cal.App.3d 57, 61–62 (1975).) Moreover, [the] trial court must determine what is impossible, impracticable, or futile “in light of all the circumstances in the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves.” (Bruns v. E-Commerce Exchange, Inc., 51 Cal.4th 717, 730.)

Code of Civil

Procedure section 473, subdivision (d) states,

“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d), emphasis added.)

An order is

considered “void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence.” (Pittman v. Beck Park Apartments Ltd. (2018) 20 Cal.App.5th 1009, 1021.) “There is no time limit to attack a judgment void on its face.” (Ibid.) However, if “the invalidity is not apparent [by an inspection of the judgment or the judgment roll], it may be set aside by motion, if such motion is filed within a reasonable time, i. e., not longer than the time set forth in Code of Civil Procedure, section 473.” (City of Los Angeles v. Morgan (1951) 105 Cal.App.2d 726, 730.) Code of Civil Procedure section 473, subdivision (d) contains no express time limit, and the California Supreme Court recently abrogated the rule that Section 473, subdivision (d) is subject to the two-year limit set forth in Code of Civil Procedure section 473.5. (California Capital Ins. Co. v. Hoehn (2024) 17 Cal.5th 207, 225-226 [“We hold that a section 473(d) motion to vacate a judgment that is void for lack of proper service is not subject to the judicially imposed two-year limitation”].)

Plaintiffs also

contend that the five-year period had not expired because time was excluded under Code of Civil Procedure section 583.340(b). The Court placed the case in special status as “Stay - Conditional Settlement,” stated that the settlement would be deemed conditional, set a settlement dismissal OSC, vacated all future dates, and advanced and vacated the final status conference and trial. During

that period, Plaintiffs could not unilaterally bring the case to trial because the trial date had been vacated and the case remained in a court-created conditional settlement stay posture.

Because fewer than six months remained before the April 23, 2026, stipulated outside date when the Court placed the case in conditional-settlement stay status and vacated trial-related dates on February 18, 2026, Plaintiffs contend that Code of Civil Procedure section 583.350 applies. Plaintiffs therefore request that the Court reinstate the claims against the nonsettling defendants, lift or clarify the stay as to those defendants, and set trial within the applicable six-month period after the excluded period ends. CCP §583.340(a). Here, it appears that the Court's calculation of the 5-year-deadline may have been in error, and therefore, the Court sets an OSC re dismissal so that the exact date may be calculated by which Plaintiffs must bring this case to trial.

#### CONCLUSION

The Court GRANTS the motion to vacate and sets a hearing date on November 20, 2026, at 9:00am, for an Order to Show Cause regarding the proper trial date in this matter.